



PROFESSIONAL ENGAGEMENT AGREEMENT

This Professional Engagement Agreement is entered into as of the date of the last signature affixed, by and between **CONDORSOFT LLC**, a New Mexico limited liability company (“the Company”), and Jara Masa Jhonatan Alexander (“Professional”) with ID Number 1150626073 In consideration of the mutual promises and covenants set forth herein, and other good and valuable consideration, the sufficiency of which is hereby acknowledged, Professional and Company hereby agree as follows:

1. **Services:** Company is in the business of providing web development staff augmentation services. Professional is hereby engaged, on behalf of Company, to provide consulting services to third party clients of Company (“Clients”) including but not limited to: programming, project management, development of internal projects, and supervising other Professionals and/or specialists (“Services”). Company will assign Professional to a particular Client or Clients and such Client(s) will assign work to Professional, and all work will be done at the direction of Client(s) and CONDORSOFT LLC., and on a timely basis.
2. **Compensation for Services:** In consideration for the Professional’s services, the Company will pay the Professional a monthly consulting fee of \$300.00 U.S. Dollars due at the end of each month. The Professional agrees and acknowledges that these payments constitute the sole remuneration for the Professional’s services and that the Professional will not be entitled to any other form of payment from any Client.
3. **Professional’s Additional Duties and Warranties:** In addition to the other covenants and obligations herein, Professional agrees to:
 - a) Perform the Services in a workmanlike manner and with professional diligence and skill.
 - b) Devote as much productive time, energy, and ability to the performance of its/his/her duties hereunder as may be necessary to provide the required Services in a timely and productive manner.
 - c) Maintain its/his/her work against the baseline assigned by Company or any Client as well as analyze and communicate the cause of any slippage.
 - d) Maintain reasonable data security practices for any computers or servers wherein Company’s or Clients’ Confidential Information (as defined in Section 11) is stored, and with regards to any relevant passwords for access to work-related systems.
 - e) Communicate with Clients in a clear, respectful and professional manner.

- f) Perform the Services in accordance with any applicable laws, rules, or regulations.
 - g) Exercise its/his/her best efforts to provide work product that is free of any material defects, and to not insert or deliberately include any logic locks, virus, Trojan horse, worm, drop-dead devices, trap doors, time bombs, or other software routines or other hardware component that could permit unauthorized access, disable, erase, or otherwise harm Company's or any Clients' systems or any software, hardware, or data, or cause such systems/software/hardware to perform any functions other than those specified by applicable Client(s) or Company.
 - h) Perform the Services without infringing or violating the rights of any third party, including patents, patent applications, copyrights, trademarks, trade secrets or any intellectual property of any kind.
4. **Ancillary Agreements:** Depending on the nature of assignments designated to Professional by Company (and the applicable Client), Professional may be requested to sign additional contracts with Clients. Although Professional is free to refuse to sign any such contracts, it may result in Professional not being assigned to the applicable Client and/or in the termination of this Agreement. Professional agrees to remit to Company a copy of any contract or agreement it executes with any Client during the term of this Agreement. Professional agrees and acknowledges that its/his/her compensation as detailed in Section 2 of this Agreement constitutes valuable and sufficient consideration for any such ancillary contract or agreement entered into between Professional and any Client during the term of this Agreement.
5. **Term:** The term of this Agreement shall begin on the Effective Date: **August 01, 2025** and continue for one year thereafter. After that, the Agreement will automatically renew for additional one-year terms. Either party may terminate this Agreement at any time for any reason, with or without cause, with twenty one (21) days' notice in writing.
6. **Capacity; Taxes:** Professional and Company hereby acknowledge and agree that neither Company nor any Client is required to pay, or make any contributions to, any social security, local, state or federal tax, unemployment compensation, workers' compensation, insurance premium, profit-sharing, pension or any employee benefit for Professional during the term of this Agreement. Professional is responsible for paying and complying with applicable reporting requirements for all local, state and federal/national taxes related to payment made to Professional under this Agreement. In providing the Services under this Agreement it is expressly agreed that Professional is acting as an independent contractor. Unless otherwise agreed, Professional is generally responsible for acquiring and maintaining all computers, workspaces, supplies, and other materials required to provide services in accordance with this Agreement. Professional and Company acknowledge that this Agreement does not create a partnership or joint venture



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between them, and that it is exclusively a contract for services.

7. **Expenses:** Neither Company nor any Client shall be liable to Professional for any expenses paid or incurred by Professional unless they have been explicitly authorized by Company.
8. **No Conflicts:** Professional represents that it/he/she is subject to no agreements which might restrict its/his/her relationship with Company or with any Client to which Professional is assigned. If Professional becomes aware at any time during the term of this Agreement that it is subject to any agreements which might restrict its relationship with Company or any Client, it will inform the Company immediately in writing.
9. **Miscellaneous:**
 - a) **Governing Law.** The validity, interpretation, construction and performance of this Agreement, and all acts and transactions pursuant hereto and the rights and obligations of the parties hereto shall be governed, construed and interpreted in accordance with the laws of state of New Mexico, without giving effect to principles of conflicts of law.
 - b) **Arbitration.** Professional and Company hereby intentionally waive any right to request a trial in any action arising out of or based upon this Agreement and any agreement contemplated to be executed in conjunction herewith. Any action arising out of or based upon this Agreement and any agreement contemplated to be executed in conjunction herewith, or the breach thereof, shall be submitted to final and binding arbitration before a competent arbitration body in the county of Company's principal place of business in accordance with the Commercial Rules and procedures of the American Arbitration Association (AAA) then existing, or other competent arbitration body agreed to in writing by the parties to this Agreement. The parties agree to reimburse the prevailing party's reasonable attorney's fees, arbitration costs, and all other expenses, in addition to any other relief to which the prevailing party may be entitled. Should the enforcement, enforceability or applicability of this provision be disputed, both parties consent to the personal jurisdiction of the state and federal courts in New Mexico state, resolve such disputes necessary to permit lawful and binding arbitration.
 - c) **Entire Agreement.** The Agreement and the attached three Addendums, taken together, constitute the entire agreement between the parties. It supersedes any other agreements or promises made between the parties, whether oral or written.
 - d) **Counterparts.** This Agreement may be executed in any number of counterparts, each of which when so executed and delivered shall be deemed an original, and all of which together shall constitute one and the



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same agreement. Execution of an electronic copy will have the same force and effect as execution of an original, and an electronic signature shall be deemed an original and valid signature. Both parties hereby agree and consent to (i) conduct business electronically (ii) receive such documents and notices by such electronic delivery and (iii) sign documents electronically and agree to participate through an online or electronic system established and maintained by Company.

- e) **Severability.** If any provision in this Agreement is, for any reason, held to be invalid, illegal, or unenforceable in any respect, that invalidity, illegality, or unenforceability will not affect any other provisions of this Agreement, but this Agreement will be construed as if the invalid, illegal, or unenforceable provisions had never been contained in this Agreement, unless the deletion of those provisions would result in such a material change that would cause completion of the transactions contemplated by this Agreement to be unreasonable.
- f) **Waiver.** No waiver of a breach, failure of any condition, or any right or remedy contained in or granted by the provisions of this Agreement will be effective unless it is in writing and signed by the party waiving the breach, failure, right, or remedy. No waiver of any breach, failure, right, or remedy will be deemed a waiver of any other breach, failure, right, or remedy, whether or not similar, and no waiver will constitute a continuing waiver, unless the writing so specifies.
- g) **Effectiveness.** This Agreement will become effective when all parties have signed it. The date this Agreement is signed by the last party to sign it (as indicated by the date associated with that party's signature) will be deemed the date of this Agreement
- h) **Survival.** The parties agree that Sections 6 and 9 of this Agreement as well as all three addendums attached hereto shall survive termination of this Agreement and shall be fully enforceable thereafter.
- i) **Ambiguity.** It is the intention of both Company and Professional that the normal rule of construction that any ambiguities are to be resolved against the drafting party shall not be utilized in the interpretation or construction of this Agreement. Both parties shall be deemed to have participated equally in the drafting of this Agreement.

- j) **Prohibitions.** The Professional is prohibited from: 1. Reveal company secrets. 2. Maintain negotiable, commercial, financial, corporate, economic or any other type of relationship with the work personnel belonging to the company, unless there is the express and informed consent of the latter, authorizing otherwise. 3. Maintain negotiable, commercial, financial, corporate, economic or any other type of relationship with previous, present and future clients linked to the company, unless there is the express and informed consent of the latter, authorizing otherwise. 4. The transgression of any of the aforementioned stipulations will be sanctioned in accordance with the applicable law.
- k) **Trial Period.** From the execution of this contract, the professional will be subject to a probationary period of one working month, in which the Company will evaluate the professional, in the way it deems appropriate, so that, if the professional does not meet the applicable labor standards or generate the required results, the company may unilaterally terminate this contract. In which case, no compensation will be paid. The professional will be notified, regarding the termination of this agreement, regarding the application of this stipulation, without the need for prior processing.
- l) **Termination.** This contract will be subject to termination, only at the company's decision, for any reason, without prejudice to the resignation of the professional, which will be accepted or denied by the company, depending on the needs and realities of the contracted work.
- m) **Intellectual property.** The products and inventions resulting from the execution of the object of this contract will be the exclusive property of the company, so the professional assigns any intellectual property right resulting from the execution of the contractual object.

Each party is signing this Agreement on the date stated opposite that party's signature.

CONDORSOFT LLC

PROFESSIONAL

Signed: _____

Manuel Ignacio Albuja Bustamante

Signed: _____

Jara Masa Jhonatan Alexander